

IN THE UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEBRA NELSON	)	
	)	C.A. No.: <u>3:25-cv-01447-MCR-ZCB</u>
Plaintiff,	)	
	)	
v.	)	
	)	
Amentum Government Services Parent	)	
Holdings LLC,	)	
CLARENCE XANDER, JANICE HUGHES,	)	
HEATHER GUNN, DAKOTA THOMAS,	)	
ELIAS VELASQUEZ, and	)	
YUSEF ABDUL-JAMI,	)	
	)	
Defendants.	)	

**PLAINTIFF'S MOTION FOR SANCTIONS FOR BAD FAITH, IMPROPER
DISCLOSURE, RETALIATION, AND CROSS-CASE COORDINATION**

Plaintiff **Debra Nelson**, pro se, respectfully moves for sanctions against Defendant **Amentum Services, Inc.** and its counsel, **Attorney Lindsay Dennis Swiger**, pursuant to **Federal Rule of Civil Procedure 11, Rule 37**, and this Court's **inherent authority** to supervise the integrity of judicial proceedings.

This motion follows Plaintiff's **Meet and Confer** notice delivered to Attorney Swiger on November 28, 2025.

I. INTRODUCTION

This action has been compromised by Defendant's litigation misconduct.

While engaging in active settlement negotiations with Plaintiff, Defendant's counsel improperly disclosed Plaintiff's employment information—including her impending termination—to Attorney Samples in a separate federal case in South Carolina (*Nelson v. Curtiss-Wright*), resulting in retaliatory harm and cross-case interference.

Defendant's counsel:

- shared confidential personnel information across cases,
- provided opposing counsel in another matter with Plaintiff's **Second Amended Complaint**,
- influenced deposition questioning on October 28,
- allowed settlement discussions to continue despite knowing termination was imminent,
- withheld this material fact from Plaintiff while disclosing it to outside counsel,
- terminated Plaintiff on October 29,
- and enabled a subpoena referencing termination on October 31, despite Plaintiff never disclosing it.

This pattern constitutes **bad faith, retaliation, abuse of process, and coordination between defense counsel in separate federal cases.**

Sanctions—including striking Defendant's Answer—are appropriate.

II. FACTUAL BACKGROUND

A. Settlement Negotiations Were Ongoing

Before October 28, 2025, Attorney Swiger and Plaintiff were engaged in active settlement discussions regarding the Amentum case.

At no time did Attorney Swiger disclose that termination was imminent or under consideration.

B. October 28, 2025 – Deposition in Curtiss-Wright Case

During Plaintiff's deposition, Attorney Samples:

- questioned Plaintiff specifically about Amentum,
- asked whether she intended to return to work there,
- possessed her **Second Amended Complaint** from this case,
- and possessed no filings from Plaintiff's other lawsuits, though they were discussed.

Plaintiff had not been terminated, nor did she know termination was imminent.

Only Amentum HR and Attorney Swiger had such information.

C. October 29, 2025 – Plaintiff Is Terminated

Plaintiff received her termination letter from Amentum one day after the deposition.

There was no public disclosure of her termination.

D. October 31, 2025 – Opposing Counsel Issues Subpoena Referencing Termination

Two days after termination, Attorney Samples issued a subpoena referencing her termination as an established fact, despite Plaintiff never informing him (**ECF 27 Exhibit H**).

This could only have been obtained through improper disclosure by Attorney Swiger or her office.

E. Interference With Payroll Access

After termination, Plaintiff sought access to her own paystubs from Payroll.

Payroll confirmed her access should be active.

However, Attorney Swiger unexpectedly intervened in this Payroll matter, further indicating ongoing monitoring and interference.

III. LEGAL STANDARDS

As previously stated (unchanged):

- **Rule 11**
- **Rule 37**
- **Inherent Authority**

All allow sanctions for bad faith, retaliation, abuse of process, or conduct undermining judicial proceedings—including striking pleadings.

IV. ARGUMENT

A. Defendant's Counsel Engaged in Bad Faith

Continuing settlement negotiations while concealing an imminent termination constitutes clear and serious **bad faith**.

If Defendant now claims the termination was “already in progress” before October 29, then:

- ✓ **Attorney Swiger would have known this during settlement discussions;**
- ✓ **She had an affirmative duty to disclose such a material adverse action;**
- ✓ **Continuing negotiations without disclosure is deceptive;**
- ✓ **But disclosing it to counsel in a separate case is retaliatory and unethical.**

Such conduct violates the duty of candor and the expectation of honest negotiation.

B. Cross-Case Coordination and Disclosure Is Improper and Prejudicial

Attorney Samples' possession of Plaintiff's **Second Amended Complaint**—and his awareness of her employment status—can only be explained by direct communication from Attorney Swiger or someone under her supervision.

Cross-case information sharing:

- is improper,
- violates ethical rules,
- contaminates both cases,
- and creates undeniable prejudice.

C. The Timing of Events Demonstrates Retaliation

The timeline is self-evident:

- October 28 – Deposition questioning influenced by inside information
- October 29 – Plaintiff is terminated
- October 31 – Subpoena referencing termination issued

Courts routinely infer retaliation where adverse actions follow protected activity this closely.

D. Defendant's Conduct Prejudiced Plaintiff in Two Federal Cases

Improper disclosure and coordinated strategy harmed Plaintiff in **both**:

- the Amentum case before this Court, and
- the Curtiss-Wright case in South Carolina.

Sanctions are necessary to remedy prejudice and deter future misconduct.

E. Severe Sanctions Are Warranted, Including Striking Defendant's Answer

Given:

- bad faith conduct;
- misuse of confidential information;
- cross-case coordination;
- retaliation immediately following protected activity;
- prejudice to Plaintiff in two courts;
- and interference with access to employment records,

the Court should impose severe sanctions, including striking Defendant's Answer.

V. REQUEST FOR RELIEF

Plaintiff respectfully requests that the Court:

1. **Strike Defendant's Answer;**
2. Enter an **adverse inference** that Plaintiff's termination was retaliatory;
3. Compel all communications between Attorney Swiger, Amentum HR, and Attorney Samples;
4. Prohibit further cross-case communication involving Plaintiff's personnel or litigation information;
5. Award **monetary sanctions;**
6. Award any **additional relief** the Court deems just.

Respectfully submitted 28th of November, 2025,



Debra Nelson

Debra Nelson
Plaintiff, Pro Se



CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing **Plaintiff's Motion for Sanctions for Bad Faith, Improper Disclosure, Retaliation, and Cross-Case Coordination** was served upon counsel for Defendants by email addressed as follows:

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